Amendment of section 251.

77. In section 251 of the Income-tax Act, in sub-section (1), in clause (*a*), the following proviso shall be inserted with effect from the 1st day of October, 2024, namely:—

"**Provided** that where such appeal is against an order of assessment made under section 144, he may set aside the assessment and refer the case back to the Assessing Officer for making a fresh assessment;".